

25NWLC77822 25NWLC77822

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Division: Civil Law and Motion

Department: Y

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Case Number: 25NWLC77822 Hearing Date: September 1, 2026 Dept: Y

25NWLC77822: AMERICAN EXPRESS NATIONAL BANK vs JESUS HERRERA

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Defendant Jesus Herrera ("Defendant"). The Court has also reviewed the relevant Court records. No opposition has been filed by Plaintiff American Express National Bank ("Plaintiff").

Defendant specially appears and moves to quash service of summons pursuant to Code of Civil Procedure § 418.10. Defendant argues that he was not properly served in compliance with the law.

Evidence Code § 647 creates a rebuttable presumption of valid service when, as here, a registered process service files a Proof of Service with the Court. The individual questioning the validity of service must present sufficient evidence to demonstrate that service did not occur as stated in the Proof of Service. Evid. Code §§ 647, 660.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on April 20, 2026 creating a presumption of service under Evidence Code section 647. The Proof of Service indicates personal service on April 6, 2026 at 8:03 p.m. at "11039 El Rey Dr. D Whittier, CA 90606 1417."

Defendant's declaration, which was signed under penalty of perjury, states that he has not lived at the address on El Rey Dr. where service purportedly occurred since September 2025. His current residence is on Simmons Ave. in Los Angeles. He states that the process server served his former roommate, Ricky Ibarra, with the Summons and Complaint and did not confirm that Mr. Ibarra was the defendant in this action. The Court finds that Defendant has rebutted the presumption of personal service.

Having considered the moving papers, Defendant's Motion to Quash Service of Process is GRANTED.

Clerk to give notice.